



United States
Attorney's Office
District of Massachusetts



Two Men Sentenced for Misbranding and Conspiring to Price Gouge N95 Masks in Early Months of COVID-19 Pandemic

Friday, April 11, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – Two brothers, who co-owned a now-defunct Florida-based company, have been sentenced in federal court in Boston for charges associated with shipping facemasks that were misbranded as N95 respirators, and price gouging hospitals, during the earliest phase of the COVID-19 pandemic.

Daniel Motha, 40, of Miami, Fla. and Jeffrey Motha, 36, of Norfolk, Mass. were each sentenced by U.S. District Court Judge Myong J. Joun to one year of probation and ordered to pay a \$9,500 fine. In October 2025, the defendants pleaded guilty to one count of introduction of misbranded devices into interstate commerce and one count of conspiracy to commit price gouging in violation of the Defense Production Act. Daniel Motha and Jeffrey Motha were charged [in October 2024](#), along with JDM Supply LLC (JDM). [In August 2023](#), a third individual, Jason Colantuoni of Norfolk, Mass, pleaded guilty to conspiracy to commit price gouging in connection with this investigation. Colantuoni is scheduled to be sentenced on June 23, 2025.

The defendants co-owned JDM, with Daniel Motha serving as the company's chief executive officer and Jeffrey Motha serving as head of sales. In the spring of 2020, during the earliest phase of the COVID-19 pandemic, JDM conspired with another company, Advoque Safeguard LLC – a PPE manufacturer – to distribute facemasks that were misbranded as National Institute of Occupational Safety and Health (NIOSH)-approved, N95 respirators. JDM misled one hospital into believing that the masks were NIOSH-approved N95s, when in fact they were not. As a result, the hospital accepted and paid for approximately 850,000 purported N95 masks that were manufactured by Advoque and sold by JDM, at a total price of approximately \$2.6 million. To accompany the masks, JDM sent the hospital NIOSH-passing test results and approval documents for a different mask. Ultimately, the hospital did not use the masks, which were eventually returned to Advoque.

In August 2020, a NIOSH lab tested a sample of the masks that had been shipped to the hospital. The masks tested between 83.94% and 93.24% filtration efficiency, thus falling below the 95% minimum level of filtration efficiency required for N95 respirators.

Daniel Motha and Jeff Motha conspired to use JDM to exploit and profit off of the critical need of hospitals and healthcare workers for scarce N95 masks during the COVID-19 pandemic. They accumulated N95 masks from various sources and then sold the N95 masks through JDM to hospitals in Massachusetts, and elsewhere, at prices that exceeded the prevailing market price.

United States Attorney Leah B. Foley; Ketty Larco-Ward, Inspector in Charge of the U.S. Postal Inspection Service, Boston Division; Fernando McMillan, Special Agent in Charge of the Food and Drug Administration, Office of Criminal Investigations; Christopher Algieri, Special Agent in Charge of the U.S. Department of Veterans Affairs Office of Inspector General, Northeast Field Office; Jodi Cohen, Special Agent in Charge of the Federal Bureau of Investigation, Boston Division; and Michael J. Krol, Acting Special Agent in Charge of Homeland Security Investigations in New England made the announcement today. Assistant U.S. Attorney Howard Locker of the Health Care Fraud Unit prosecuted the case.

On May 17, 2021, the Attorney General established the COVID-19 Fraud Enforcement Task Force to marshal the resources of the Department of Justice in partnership with agencies across government to enhance efforts to combat and prevent pandemic-related fraud. The Task Force bolsters efforts to investigate and prosecute the most culpable domestic and international criminal actors and assists agencies tasked with administering relief programs to prevent fraud by augmenting and incorporating existing coordination mechanisms, identifying resources and techniques to uncover fraudulent actors and their schemes, and sharing and harnessing information and insights gained from prior enforcement efforts. For more information on the department’s response to the pandemic, please visit <https://www.justice.gov/coronavirus> and <https://www.justice.gov/coronavirus/combatingfraud>.

Anyone with information about allegations of attempted fraud involving COVID-19 can report it by calling the Department of Justice’s National Center for Disaster Fraud Hotline via the [NCDF Web Complaint Form](#).

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